

HOUSE No. 2326

The Commonwealth of Massachusetts

PRESENTED BY:

Sean Reid

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to prevent nonprofit institutions from avoiding wetlands or natural resource protections under the so-called Dover Amendment.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Sean Reid</i>	<i>11th Essex</i>	<i>1/9/2025</i>

HOUSE No. 2326

By Representative Reid of Lynn, a petition (accompanied by bill, House, No. 2326) of Sean Reid relative to zoning restrictions for land or structures for religious or educational purposes. Municipalities and Regional Government.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to prevent nonprofit institutions from avoiding wetlands or natural resource protections under the so-called Dover Amendment.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. The General Court hereby finds and declares that the use of the so-called
2 Dover amendment by nonprofit institutions to avoid wetland or natural resource area protections
3 may be harmful to the public health and environment.

4 SECTION 2. Section 3 of chapter 40A of the General Laws, as appearing in the 2020
5 Official Edition, is hereby amended by striking out, in line 53, the words “restrict the” and
6 inserting in place thereof the following words:- restrict, other than through wetlands or natural
7 resource area protections.